

## **UNIT – V: STATUTORY INSTITUTIONS**

### **ELECTION COMMISSION OF INDIA**

The Election Commission is a permanent and an independent body established by the Constitution of India directly to ensure free and fair elections in the country. Article 324 of the Constitution provides that the power of superintendence, direction and control of elections to parliament, state legislatures, the office of president of India and the office of vice-president of India shall be vested in the election commission. Thus, the Election Commission is an all-India body in the sense that it is common to both the Central government and the state governments. It must be noted here that the election commission is not concerned with the elections to panchayats and municipalities in the states. For this, the Constitution of India provides for a separate State Election Commission.

#### **COMPOSITION**

Article 324 of the Constitution has made the following provisions with regard to the composition of election commission:

1. The Election Commission shall consist of the chief election commissioner and such number of other election commissioners, if any, as the president may from time to time fix.
2. The appointment of the chief election commissioner and other election commissioners shall be made by the president.
3. When any other election commissioner is so appointed, the chief election commissioner shall act as the chairman of the election commission.
4. The president may also appoint after consultation with the election commission such regional commissioners as he may consider necessary to assist the election commission.
5. The conditions of service and tenure of office of the election commissioners and the regional commissioners shall be determined by the president.

Since its inception in 1950 and till 15 October 1989, the election commission functioned as a single member body consisting of the Chief Election Commissioner. On 16 October 1989, the president appointed two more election commissioners to cope with the increased work of the election commission on account of lowering of the voting age from 21 to 18 years. Thereafter, the Election Commission functioned as a multimember body consisting of three election commissioners. Since then and till today, the Election Commission has been functioning as a multi-member body consisting of three election commissioners.

The chief election commissioner and the two other election commissioners have equal powers and receive equal salary, allowances and other perquisites, which are similar to those of a judge of the Supreme Court. In case of difference of opinion amongst the Chief election commissioner and/or two other election commissioners, the matter is decided by the Commission by majority.

They hold office for a term of six years or until they attain the age of 65 years, whichever is earlier. They can resign at any time or can also be removed before the expiry of their term.

## INDEPENDENCE

Article 324 of the Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of the Election Commission:

1. The chief election commissioner is provided with the security of tenure. He cannot be removed from his office except in same manner and on the same grounds as a judge of the Supreme Court. In other words, he can be removed by the president on the basis of a resolution passed to that effect by both the Houses of Parliament with special majority, either on the ground of proved misbehaviour or incapacity. Thus, he does not hold his office till the pleasure of the president, though he is appointed by him.
2. The service conditions of the chief election commissioner cannot be varied to his disadvantage after his appointment.
3. Any other election commissioner or a regional commissioner cannot be removed from office except on the recommendation of the chief election commissioner.

Though the constitution has sought to safeguard and ensure the independence and impartiality of the Election Commission, some flaws can be noted, viz.,

1. The Constitution has not prescribed the qualifications (legal, educational, administrative or judicial) of the members of the Election Commission.
2. The Constitution has not specified the term of the members of the Election Commission.
3. The Constitution has not debarred the retiring election commissioners from any further appointment by the government.

## POWERS AND FUNCTIONS

The powers and functions of the Election Commission with regard to elections to the Parliament, state legislatures and offices of President and Vice-President can be classified into three categories, viz,

1. Administrative
2. Advisory
3. Quasi-Judicial

In detail, these powers and functions are:

1. To determine the territorial areas of the electoral constituencies throughout the country on the basis of the Delimitation Commission Act of Parliament.
2. To prepare and periodically revise electoral rolls and to register all eligible voters.
3. To notify the dates and schedules of elections and to scrutinize nomination papers.
4. To grant recognition to political parties and allot election symbols to them.
5. To act as a court for settling disputes related to granting of recognition to political parties and allotment of election symbols to them.
6. To appoint officers for inquiring into disputes relating to electoral arrangements.
7. To determine the code of conduct to be observed by the parties and the candidates at the time of elections.
8. To prepare a roster for publicity of the policies of the political parties on radio and TV in times of elections.
9. To advise the president on matters relating to the disqualifications of the members of Parliament.

10. To advise the governor on matters relating to the disqualifications of the members of state legislature.
11. To cancel polls in the event of rigging, booth capturing, violence and other irregularities.
12. To request the president or the governor for requisitioning the staff necessary for conducting elections.
13. To supervise the machinery of elections throughout the country to ensure free and fair elections.
14. To advise the president whether elections can be held in a state under president's rule in order to extend the period of emergency after one year.
15. To register political parties for the purpose of elections and grant them the status of national or state parties on the basis of their poll performance. The Election Commission is assisted by deputy election commissioners.

They are drawn from the civil service and appointed by the commission with tenure system. They are assisted, in turn, by the secretaries, joint secretaries, deputy secretaries and under secretaries posted in the secretariat of the commission.

At the state level, the Election Commission is assisted by the chief electoral officer who is appointed by the chief election commissioner in consultation with the state government. Below this, at the district level, the collector acts as the district returning officer. He appoints a returning officer for every constituency in the district and presiding officer for every polling booth in the constituency.

## VISION, MISSION AND PRINCIPLES

**Vision** The Election Commission of India strives to be an Institution of Excellence by enhancing active engagement, participation; and deepening and strengthening electoral democracy in India and globally.

**Mission** The Election Commission of India maintains independence, integrity and autonomy; ensures accessibility, inclusiveness, and ethical participation of stakeholders; and, adopts highest standards of professionalism for delivering free, fair, and transparent elections to strengthen the trust in electoral democracy and governance.

**Guiding Principles** The Commission laid down for itself guiding principles of good governance:

1. To uphold the values enshrined in the Constitution viz, equality, equity, impartiality, independence; and rule of law in superintendence, direction and control over the electoral governance;
2. To conduct elections with highest standard of credibility, freeness, fairness, transparency, integrity, accountability, autonomy and professionalism;
3. To ensure participation of all eligible citizens in the electoral process in an inclusive voter centric and voter-friendly environment;
4. To engage with political parties and all stakeholders in the interest of electoral process;
5. To promote awareness about the electoral process and electoral governance amongst stakeholders namely, voters, political parties, election functionaries, candidates and people at large; and to enhance and strengthen confidence and trust in the electoral system of this country;
6. To develop the human resource for effective and professional delivery of electoral services;
7. To build quality infrastructure and adopt technology for smooth conduct of electoral process.

## ELECTORAL SYSTEM

Articles 324 to 329 in Part XV of the Constitution make the following provisions with regard to the electoral system in our country:

1. The Constitution (Article 324) provides for an independent Election Commission in order to ensure free and fair elections in the country. The power of superintendence, direction and conduct of elections to the Parliament, the state legislatures, the office of the President and the office of the Vice-President is vested in the Commission. At present, the commission consists of a chief election commissioner and two election commissioners.
2. There is to be only one general electoral roll for every territorial constituency for election to the Parliament and the state legislatures. Thus, the Constitution has abolished the system of communal representation and separate electorates which led to the partition of the country.
3. No person is to be ineligible for inclusion in the electoral roll on grounds only of religion, race, caste, sex or any of them. Further, no person can claim to be included in any special electoral roll for any constituency on grounds only of religion, race, caste or sex or any of them. Thus, the Constitution has accorded equality to every citizen in the matter of electoral franchise.
4. The elections to the Lok Sabha and the state assemblies are to be on the basis of adult franchise. Thus, every person who is a citizen of India and who is 18 years of age, is entitled to vote at the election provided he is not disqualified under the provisions of the Constitution or any law made by the appropriate legislature (Parliament or state legislature) on the ground of non-residence, unsound mind, crime or corrupt or illegal practice.
5. Parliament may make provision with respect to all matters relating to elections to the Parliament and state legislatures including preparation of electoral rolls, the delimitation of constituencies and other matters for securing their due constitution.
6. The state legislatures can also make provision with respect to all matters of elections to the state legislatures including the preparation of electoral rolls and all other matters necessary for securing their due constitution. But, they can make provision for only those matters which are not covered by the Parliament. In other words, they can only supplement the parliamentary law and cannot override it.
7. The Constitution declares that the validity of any law relating to the delimitation of constituencies or the allotment of seats to such constituencies cannot be questioned in any court. Consequently, the orders issued by the Delimitation Commission become final and cannot be challenged in any court.
8. The Constitution lays down that no election to the Parliament or the state legislature is to be questioned except by an election petition presented to such authority and in such manner as provided by the appropriate legislature. Since 1966, the election petitions are triable by high courts alone. But, the appellate jurisdiction lies with the Supreme Court alone.

## ELECTION MACHINERY

**Election Commission of India (ECI)** Under Article 324 of the Constitution of India, the Election Commission of India is vested with the power of superintendence, direction and control of conducting the elections to the Lok Sabha and State Legislative Assemblies. The Election Commission of India is a three-member body, with one Chief Election Commissioner and two Election Commissioners. The President of India appoints the Chief Election Commissioner and the Election Commissioners.

**Chief Electoral Officer (CEO)** The Chief Electoral Officer of a state/ Union Territory is authorised to supervise the election work in the state/Union Territory subject to the overall superintendence, direction and control of the Election Commission. The Election Commission of India nominates or designates an Officer of

the Government of the state / Union Territory as the Chief Electoral Officer in consultation with that State Government / Union Territory Administration.

**District Election Officer (DEO)** Subject to the superintendence, direction and control of the Chief Electoral Officer, the District Election Officer supervises the election work of a district. The Election Commission of India nominates or designates an officer of the state Government as the District Election Officer in consultation with the state government.

**Returning Officer (RO)** The Returning Officer of a Parliamentary or assembly constituency is responsible for the conduct of elections in the Parliamentary or assembly constituency concerned. The Election Commission of India nominates or designates an officer of the Government or a local authority as the Returning Officer for each of the assembly and parliamentary constituencies in consultation with the State Government / Union Territory Administration. In addition, the Election Commission of India also appoints one or more Assistant Returning Officers for each of the assembly and Parliamentary constituencies to assist the Returning Officer in the performance of his functions in connection with the conduct of elections.

**Electoral Registration Officer (ERO)** The Electoral Registration Officer is responsible for the preparation of electoral rolls for a Parliamentary/ assembly constituency. The Election Commission of India, in consultation with the state / UT government, appoints an officer of the government or the local authorities as the Electoral Registration Officer. In addition, the Election Commission of India also appoints one or more Assistant Electoral Registration Officers to assist the Electoral Registration Officer in the performance of his functions in the matter of preparation / revision of electoral rolls.

**Presiding Officer** The Presiding Officer with the assistance of polling officers conducts the poll at a polling station. The District Election Officer appoints the Presiding Officers and the Polling Officers. In the case of Union Territories, such appointments are made by the Returning Officers.

**Observers** The Election Commission of India nominates officers of Government as Observers for Parliamentary and Assembly Constituencies. These observers are of various kinds:

1. **General Observers:** The Commission deploys General Observers in adequate number to ensure smooth conduct of elections. These Observers are asked to keep a close watch on every stage of the electoral process to ensure free and fair elections.
2. **Expenditure Observers:** Expenditure Observers from Central Government Services are appointed to keep a close watch on election expenditure of the candidates and to ensure that no inducement is offered to the electors during the entire election process for exercise of their franchise.
3. **Police Observers:** The Commission deploys IPS officers as Police Observers at State and District levels, depending upon the sensitivity of the Constituency, wherever required. They monitor all activities relating to force deployment, law and order situation and co-ordinate between the Civil and Police administration to ensure free and fair election.
4. **Awareness Observers:** For the first time in the 16<sup>th</sup> Lok Sabha Elections (2014), the Commission deployed Central Awareness Observers to oversee the efficient and effective management of the electoral process at the field level, mainly in respect of voter awareness and facilitation. Awareness Observers are deployed to observe interventions undertaken by the election machinery to bridge the gap in people's participation in the electoral process particularly in regard to voters' turnout.

## **ELECTION PROCESS**

### **Time of Elections**

Elections for the Lok Sabha and every state Legislative Assembly have to take place every five years, unless called earlier. The President can dissolve Lok Sabha and call a General Election before five years is up, if the Government can no longer command the confidence of the Lok Sabha, and if there is no alternative government available to take over.

### **Schedule of Elections**

When the five-year limit is up, or the legislature has been dissolved and new elections have been called, the Election Commission puts into effect the machinery for holding an election. The Constitution states that there can be no longer than six months between the last session of the dissolved Lok Sabha and the recalling of the new House, so elections have to be concluded before then. The Commission normally announces the schedule of elections in a major press conference a few weeks before the formal process is set in motion. The Model Code of Conduct for guidance of candidates and political parties comes immediately into effect after such announcement.

The formal process for the elections starts with the Notification or Notifications calling upon the electorate to elect Members of a House. As soon as Notifications are issued, candidates can start filing their nominations in the constituencies from where they wish to contest. These are scrutinised by the Returning Officer of the constituency concerned after the last date for the same is over after about a week. The validly nominated candidates can withdraw from the contest within two days from the date of scrutiny. Contesting candidates get at least two weeks for political campaign before the actual date of poll.

On account of the vast magnitude of operations and the massive size of the electorate, polling is held on a number of days for the national elections. A separate date for counting is fixed and the results declared for each constituency by the concerned Returning Officer.

The Commission compiles the complete list of members elected and issues an appropriate Notification for the due constitution of the House. With this, the process of elections is complete and the President, in case of the Lok Sabha, and the Governors of the concerned states, in case of State Assemblies, can then convene their respective Houses to hold their sessions.

### **Oath or Affirmation**

It is necessary for a candidate to make and subscribe an oath or affirmation before an officer authorised by the Election Commission. For any particular election, the authorised persons are, principally, the Returning Officer and the Assistant Returning Officer for the constituency. In the case of a candidate confined in a prison or under preventive detention, the superintendent of the prison or commandant of the detention camp in which he is so confined or is under such detention is authorised to administer the oath. And in the case of a candidate confined to bed in a hospital or elsewhere owing to illness or any other cause, the medical superintendent in charge of the hospital or the medical practitioner attending on him is similarly authorised. If a candidate is outside India, the Indian Ambassador or High Commissioner or diplomatic consular authorised by him can also administer oath/affirmation. The candidate, in person, is required to make the oath or affirmation immediately after presenting his nomination papers and in any case not later than the day previous to the date of the scrutiny.

## **Election Campaign**

The campaign is the period when the political parties put forward their candidates and arguments with which they hope to persuade people to vote for their candidates and parties. Candidates are given a week to put forward their nominations. These are scrutinised by the Returning Officers and if not found to be in order can be rejected after a summary hearing. Validly nominated candidates can withdraw within two days after nominations have been scrutinised. The official campaign lasts at least two weeks from the drawing up of the list of nominated candidates, and officially ends 48 hours before polling closes.

During the election campaign, the political parties and contesting candidates are expected to abide by a Model Code of Conduct evolved by the Election Commission on the basis of a consensus among political parties. The model code lays down broad guidelines as to how the political parties and candidates should conduct themselves during the election campaign. It is intended to maintain the election campaign on healthy lines, avoid clashes and conflicts between political parties or their supporters and to ensure peace and order during the campaign period and thereafter, until the results are declared. The model code also prescribes guidelines for the ruling party either at the Centre or in the state to ensure that a level field is maintained and that no cause is given for any complaint that the ruling party has used its official position for the purposes of its election campaign.

Once an election has been called, parties issue manifestos detailing the programmes they wish to implement if elected to government, the strengths of their leaders, and the failures of opposing parties and their leaders. Slogans are used to popularise and identify parties and issues, and pamphlets and posters distributed to the electorate. Rallies and meetings where the candidates try to persuade, cajole and enthuse supporters, and denigrate opponents, are held throughout the constituencies. Personal appeals and promises of reform are made, with candidates travelling the length and breadth of the constituency to try to influence as many potential supporters as possible.

## **Polling Days**

Polling is normally held on a number of different days in different constituencies, to enable the security forces and those monitoring the election to keep law and order and ensure that voting during the election is fair.

## **Ballot Papers and Symbols**

After nomination of candidates is complete, a list of competing candidates is prepared by the Returning Officer, and ballot papers are printed. Ballot papers are printed with the names of the candidates (in languages set by the Election Commission) and the symbols allotted to each of the candidates. Candidates of recognised parties are allotted their party symbols.

## **Voting Procedure**

Voting is by secret ballot. Polling stations are usually set up in public institutions, such as schools and community halls. To enable as many electors as possible to vote, the officials of the Election Commission try to ensure that there is a polling station within two kilometres of every voter, and that no polling stations should have to deal with more than 1500 voters. Each polling station is open for at least eight hours on the day of the election.

On entering the polling station, the elector is checked against the electoral roll, and allocated a ballot paper. The elector votes by marking the ballot paper with a rubber stamp on or near the symbol of the candidate of his choice and inserts the ballot paper inside the ballot box. However, these days Electronic Voting Machines became common for voting in elections.

**Supervising Elections**

The Election Commission appoints a large number of Observers to ensure that the campaign is conducted fairly, and that people are free to vote as they choose. Election expenditure Observers keep a check on the amount that each candidate and party spends on the election.

**Counting of Votes**

After the polling has finished, the votes are counted under the supervision of Returning Officers and Observers appointed by the Election Commission. After the counting of votes is over, the Returning Officer declares the name of the candidate, to whom the largest number of votes have been given, as the winner and as having been returned by the constituency to the concerned House.

Elections to the Lok Sabha are carried out using a first-past-the-post electoral system. The country is split up into separate geographical areas, known as constituencies, and the electors can cast one vote each for a candidate, the winner being the candidate who gets the maximum votes.

Elections to the State Assemblies are carried out in the same manner as for the Lok Sabha election, with the states and union territories divided into single-member constituencies, and the first-past-the-post electoral system used.



# **NATIONAL HUMAN RIGHTS COMMISSION**

## **ESTABLISHMENT OF THE COMMISSION**

The National Human Rights Commission is a statutory (and not a constitutional) body. It was established in 1993 under a legislation enacted by the Parliament, namely, the Protection of Human Rights Act, 1993. This Act was amended in 2006. The commission is the watchdog of human rights in the country, that is, the rights relating to life, liberty, equality and dignity of the individual guaranteed by the Constitution or embodied in the international covenants and enforceable by courts in India. The specific objectives of the establishment of the commission are:

- (a) To strengthen the institutional arrangements through which human rights issues could be addressed in their entirety in a more focussed manner;
- (b) To look into allegations of excesses, independently of the government, in a manner that would underline the government's commitment to protect human rights; and
- (c) To complement and strengthen the efforts that have already been made in this direction.

## **COMPOSITION OF THE COMMISSION**

The commission is a multi-member body consisting of a chairman and four members. The chairman should be a retired chief justice of India, and members should be serving or retired judges of the Supreme Court, a serving or retired chief justice of a high court and two persons having knowledge or practical experience with respect to human rights. In addition to these full-time members, the commission also has four ex-officio members—the chairmen of the National Commission for Minorities, the National Commission for SCs, the National Commission for STs and the National Commission for Women.

The chairman and members are appointed by the president on the recommendations of a six-member committee consisting of the prime minister as its head, the Speaker of the Lok Sabha, the Deputy Chairman of the Rajya Sabha, leaders of the Opposition in both the Houses of Parliament and the Central home minister. Further, a sitting judge of the Supreme Court or a sitting chief justice of a high court can be appointed only after consultation with the chief justice of India.

The chairman and members hold office for a term of five years or until they attain the age of 70 years, whichever is earlier. After their tenure, the chairman and members are not eligible for further employment under the Central or a state government.

The president can remove the chairman or any member from the office under the following circumstances:

- (a) If he is adjudged an insolvent; or
- (b) If he engages, during his term of office, in any paid employment outside the duties of his office; or
- (c) If he is unfit to continue in office by reason of infirmity of mind or body; or
- (d) If he is of unsound mind and so declared by a competent court; or
- (e) If he is convicted and sentenced to imprisonment for an offence.

In addition to these, the president can also remove the chairman or any member on the ground of proved misbehaviour or incapacity. However, in these cases, the president has to refer the matter to the Supreme Court for an inquiry. If the Supreme

Court, after the inquiry, upholds the cause of removal and advises so, then the president can remove the chairman or a member.

The salaries, allowances and other conditions of service of the chairman or a member are determined by the Central government. But, they cannot be varied to his disadvantage after his appointment.

All the above provisions are aimed at securing autonomy, independence and impartiality in the functioning of the Commission.

## FUNCTIONS OF THE COMMISSION

The functions of the Commission are:

- (a) To inquire into any violation of human rights or negligence in the prevention of such violation by a public servant, either *suo motu* or on a petition presented to it or on an order of a court.
- (b) To intervene in any proceeding involving allegation of violation of human rights pending before a court.
- (c) To visit jails and detention places to study the living conditions of inmates and make recommendation thereon.
- (d) To review the constitutional and other legal safeguards for the protection of human rights and recommend measures for their effective implementation.
- (e) To review the factors including acts of terrorism that inhibit the enjoyment of human rights and recommend remedial measures.
- (f) To study treaties and other international instruments on human rights and make recommendations for their effective implementation.
- (g) To undertake and promote research in the field of human rights.
- (h) To spread human rights literacy among the people and promote awareness of the safeguards available for the protection of these rights.
- (i) To encourage the efforts of non-governmental organisations (NGOs) working in the field of human rights.
- (j) To undertake such other functions as it may consider necessary for the promotion of human rights.

## WORKING OF THE COMMISSION

The commission's headquarters is at Delhi and it can also establish offices at other places in India. It is vested with the power to regulate its own procedure. It has all the powers of a civil court and its proceedings have a judicial character. It may call for information or report from the Central and state governments or any other authority subordinate thereto.

The commission has its own nucleus of investigating staff for investigation into complaints of human rights violations. Besides, it is empowered to utilise the services of any officer or investigation agency of the Central government or any state government for the purpose. It has also established effective cooperation with the NGOs with first-hand information about human rights violations.

The commission is not empowered to inquire into any matter after the expiry of one year from the date on which the act constituting violation of human rights is alleged to have been committed. In other words, it can look into a matter within one year of its occurrence.

The commission may take any of the following steps during or upon the completion of an inquiry:

- (a) it may recommend to the concerned government or authority to make payment of compensation or damages to the victim;
- (b) it may recommend to the concerned government or authority the initiation of proceedings for prosecution or any other action against the guilty public servant;
- (c) it may recommend to the concerned government or authority for the grant of immediate interim relief to the victim;
- (d) it may approach the Supreme Court or the high court concerned for the necessary directions, orders or writs.

## **ROLE OF THE COMMISSION**

From the above, it is clear that the functions of the commission are mainly recommendatory in nature. It has no power to punish the violators of human rights, nor to award any relief including monetary relief to the victim. Notably, its recommendations are not binding on the concerned government or authority. But, it should be informed about the action taken on its recommendations within one month. In this context, a former member of the Commission observed: 'The government cannot wash away the recommendations made by the Commission. The commission's role may be recommendatory, advisory, yet the Government considers the cases forwarded by it. It is, therefore, improper to say that the commission is powerless. It enjoys great material authority and no government can ignore its recommendation'.

Moreover, the commission has limited role, powers and jurisdiction with respect to the violation of human rights by the members of the armed forces<sup>6</sup>. In this sphere, the commission may seek a report from the Central government and make its recommendations. The Central government should inform the Commission of the action taken on the recommendations within three months. The commission submits its annual or special reports to the Central government and to the state government concerned. These reports are laid before the respective legislatures, along with a memorandum of action taken on the recommendations of the commission and the reasons for non- acceptance of any of such recommendations.

## **PERFORMANCE OF THE COMMISSION**

The various human rights issues taken up by the Commission are as follows:

1. Abolition of Bonded Labour
2. Functioning of the Mental Hospitals at Ranchi, Agra and Gwalior
3. Functioning of the Government Protective Home (Women), Agra
4. Issues Concerning Right to Food
5. Review of the Child Marriage Restraint Act, 1929
6. Protocols to the Convention on the Rights of the Child
7. Preventing Employment of Children by Government Servants
8. Abolition of Child Labour
9. Guidebook for the Media on Sexual Violence against Children
10. Trafficking in Women and Children: Manual for the Judiciary for Gender Sensitisation
11. Sensitisation Programme on Prevention of Sex Tourism and Trafficking
12. Maternal Anemia and Human Rights
13. Rehabilitation of Destitute Women in Vrindavan

14. Combating Sexual Harassment of Women at the Work Place
15. Harassment of Women Passengers in Trains
16. Abolition of Manual Scavenging
17. Dalits Issues including Atrocities Perpetrated on them
18. Problems Faced by Denotified and Nomadic Tribes
19. Rights of the Disabled Persons
20. Issues Related to Right to Health
21. Rights of Persons Affected by HIV / AIDS
22. Relief Work for the Victims of 1999 Orissa Cyclone
23. Monitoring of Relief Measures undertaken after Gujarat Earthquake(2001)
24. District Complaints Authority
25. Population Policy – Development and Human Rights
26. Review of Statutes, including Terrorist & Disruptive Activities Act, and(Draft) Prevention of Terrorism Bill, 2000
27. Protection of Human Rights in Areas of Insurgency and Terrorism
28. Guidelines to Check Misuse of the Power of Arrest by the Police
29. Setting up of Human Rights Cells in the State / City Police Headquarters
30. Steps to Check Custodial Deaths, Rape and Torture
31. Accession to the Convention against Torture
32. Discussion on Adoption of a Refugee Law for the Country
33. Systemic Reforms of Police, Prisons and other Centers of Detention
34. Review of Laws, Implementation of Treaties, and the International Instruments on Human Rights
35. Promotion of Human Rights Literacy and Awareness in the Educational System
36. Human Rights Training for the Armed Forces and Police, Public Authorities and Civil Society

### **HUMAN RIGHTS (AMENDMENT) ACT, 2006**

The Parliament has passed the Protection of Human Rights (Amendment) Act, 2006. The main amendments carried out in the Protection of Human Rights Act, 1993, relate to the following issues:

1. Reducing the number of members of State Human Rights Commissions (SHRCs) from five to three
2. Changing the eligibility condition for appointment of member of SHRCs
3. Strengthening the investigative machinery available with Human Rights Commissions
4. Empowering the Commissions to recommend award of compensation, etc. even during the course of enquiry
5. Empowering the NHRC to undertake visits to jails even without intimation to the state governments
6. Strengthening the procedure for recording of evidence of witnesses
7. Clarifying that the Chairpersons of NHRC and SHRCs are distinct from the Members of the respective Commission
8. Enabling the NHRC to transfer complaints received by it to the concerned SHRC
9. Enabling the Chairperson and members of the NHRC to address their resignations in writing to the President and the Chairperson and members of the SHRCs to the Governor of the state concerned
10. Providing that the Chairperson of the National Commission for the Scheduled Castes and the Chairperson of the National Commission for the Scheduled Tribes shall be deemed to be members of the NHRC
11. Enabling the Central Government to notify future international covenants and conventions to which the Act would be applicable

# **NATIONAL COMMISSION FOR WOMEN**

## **Establishment of the Commission**

The Committee on Status of Women in India (set-up by the Government of India) in 1974 recommended the constitution of a National Commission for Women to fulfill the surveillance functions and to facilitate redressal of grievances and to accelerate the socio-economic development of women. Again, the successive women-related committees, commissions and plans including the National Perspective Plan for Women (1988) have also recommended the constitution of such an apex body for women. Accordingly, the National Commission for Women was constituted in 1992 for protecting, promoting and safeguarding the interests and rights of women.

The Commission is an autonomous statutory (and not a constitutional) body. It was established under a legislation enacted by the Parliament, namely, the National Commission for Women Act, 1990. The Ministry of Women and Child Development of the Government of India is the nodal ministry for the Commission.

The Commission has a wide mandate covering almost all aspects of women's development and empowerment. Its specific objectives are:

- (i) To review the constitutional and legal safeguards for women
- (ii) To recommend remedial legislative measures
- (iii) To facilitate redressal of grievances
- (iv) To advise the government on all policy matters affecting women

## **Composition of the Commission**

The Commission is a multi-member body consisting of a chairperson, five members and a member-secretary. The chairperson should be someone who is committed to the cause of women. The five members should be from amongst persons of ability, integrity and standing who have had experience in law or legislation, trade unionism, management of an industry or organisation committed to increasing the employment potential of women, women's voluntary organisations (including women activists), administration, economic development, health, education or social welfare. However, at least one member each should belong to the Scheduled Castes and Scheduled Tribes respectively.

The member-secretary should be (i) an expert in the field of management, organisational structure or sociological movement, or (ii) an officer who is a member of a Civil Service of the Union or an all-India service or holds a civil post under the Union.

The chairperson, members and member-secretary are all nominated by the Central Government (Ministry of Women and Child Development). Their salaries, allowances and other service conditions are also prescribed by the Central Government.

## **Tenure of the Members**

The chairperson and members hold office for a period of three years. However, they can relinquish their office at any time by addressing their resignation to the Central Government.

Further, the Central Government can also remove the chairperson or a member from the office (before the expiry of his term) under the following circumstances:

- (a) If he becomes an undischarged insolvent
- (b) If he gets convicted and sentenced to imprisonment for an offence which (in the opinion of the Central Government) involves moral turpitude
- (c) If he is declared of unsound mind by a competent court
- (d) If he refuses to act or becomes incapable of acting
- (e) If he absents himself from three consecutive meetings of the Commission, or
- (f) If he has so abused his official position which (in the opinion of the Central Government) renders his continuance in the office as detrimental to the public interest.

However, the chairperson or a member cannot be removed until he is given a reasonable opportunity of being heard in the matter.

## **Functions of the Commission**

The Commission is provided with a fourteen-point mandate.

1. To investigate and examine all matters relating to the safeguards provided for women under the Constitution and other laws.
2. To present to the Central Government annually and at such other times as it may deem fit, reports upon the working of those safeguards.
3. To make recommendations for the effective implementation of those safeguards for improving the conditions of women by the Union or any state.
4. To review the existing provisions of the Constitution and other laws affecting women and recommend amendments to meet any inadequacies in such laws.
5. To take up the cases of violation of the provisions of the Constitution and other laws relating to women with the appropriate authorities.
6. To look into complaints and take *suo moto* notice of matters relating to
  - (i) deprivation of women's rights
  - (ii) non-implementation of laws enacted to provide protection to women and also to achieve the objective of equality and development and
  - (iii) non-compliance of policy decisions or instructions aimed at mitigating hardships and ensuring welfare and providing relief to women.
7. To call for special studies or investigations into specific problems or situations arising out of discrimination and atrocities against women and to identify the constraints so as to recommend strategies for their removal.
8. To undertake promotional and educational research so as to suggest ways of ensuring due representation of women in all spheres and to identify factors responsible for impeding their advancement, such as, lack of access to housing and basic services, inadequate support services and technologies for reducing drudgery and occupational health hazards and for increasing their productivity.
9. To participate and advice on the planning process of socio-economic development of women.
10. To evaluate the progress of the development of women under the Union and any state.
11. To inspect any jail, remand home, women's institution or other place of custody where women are kept as prisoners or otherwise, and take up with the concerned authorities for remedial action.
12. To fund litigation involving issues affecting a large body of women.
13. To make periodical reports to the government on any matter pertaining to women and in particular various difficulties under which women toil.
14. To look into any other matter referred to it by the Central Government.

## Report of the Commission

The Commission presents an annual report to the Central Government. It can also submit a report as and when it thinks necessary.

The Central Government places all such reports before each House of Parliament, along with a memorandum explaining the action taken on the recommendations made by the Commission. The memorandum should also contain the reasons for the non-acceptance of any of such recommendations. If any such report is related to any matter with which any state government is concerned, the Commission forwards a copy of such report to such state government. The state government places it before the state legislature, along with a memorandum explaining the action taken on the recommendations of the commission. The memorandum should also contain the reasons for the non-acceptance of any of such recommendations.

## Powers of the Commission

The Commission can appoint the committees necessary for dealing with the special issues taken up by it from time to time. It is also empowered to co-opt as members of any such committee the persons from outside the Commission (i.e., those who are not members of the Commission). The co-opted persons can attend the meetings of the committee and take part in its proceedings but without the right to vote. The Commission shall regulate its own procedure and also the procedure of its committees.

The Commission, while investigating any matter or inquiring into any complaint, has all the powers of a civil court trying a suit and in particular in respect of the following matters:

- (a) summoning and enforcing the attendance of any person from any part of India and examining him on oath
- (b) requiring the discovery and production of any document
- (c) receiving evidence on affidavits
- (d) requisitioning any public record from any court or office

- (e) issuing summons for the examination of witnesses and documents and any other matter which may be prescribed by the Central Government.

The Central Government should consult the Commission on all major policy matters affecting women.

### **Working of the Commission**

The Commission processes the complaints received verbally or in writing. It also takes into account *suo moto* notice of cases related to women.

The complaints received relate to various categories of crimes against women such as domestic violence, harassment, dowry, torture, murder, kidnapping/abduction, complaints against NRI marriages, desertion, bigamy, rape, police harassment/brutality, cruelty by husband, deprivation of rights, gender discrimination, sexual harassment at workplace and so on.

The complaints are acted upon in the following manner:

1. Specific cases of police apathy are sent to the police authorities for investigation and cases are monitored.
2. Family disputes are resolved or compromises struck through counseling.
3. Disaggregated data are made available to various state authorities to facilitate action.
4. In sexual harassment complaints, the concerned organisations are urged to expedite cases and the disposal is monitored.
5. For serious crimes, the Commission constitutes an Inquiry Committee to provide immediate relief and justice to the victims of violence and atrocities.

### **Strategies of the Commission**

In keeping with its mandate, the Commission evolved the following strategies to improve upon the status of women and women's development:

1. Economic empowerment through building up skills and securing access to gainful employment
2. Political empowerment through awareness, training and mobilization for equitable representation in all forms.
3. Prevention of violence and discrimination against women inside and outside the home through legal reform and sensitive enforcement.
4. Amelioration of conditions of disadvantaged women, such as
  - (i) Physically challenged women including those who are visually disabled or mentally affected.
  - (ii) Socially challenged women including Muslim women, women from Scheduled Caste and Scheduled Tribes, widows and prostitutes.
5. Prevention of indecent representation of women in the media through legal and social sanctions.

### **Parivarik Mahila Lok Adalat**

The Commission has evolved an innovative concept of Parivarik Mahila Lok Adalat (PMLA), which in turn supplements the efforts of the District Legal Service Authority (DLSA) for redressal and speedy disposal of the matters related to marriage and family affairs pending in various courts.

The Parivarik Mahila Lok Adalat functions on the model of the Lok Adalat. The Commission provides financial assistance to NGOs or State Women Commissions or State Legal Service Authority to organise the Parivarik Mahila Lok Adalat.

The objectives of Parivarik Mahila Lok Adalat are as follows:

1. To provide speedy and cost free dispensation of justice to women.
2. To generate awareness among the public regarding conciliatory mode of dispute settlement.
3. To gear up the process of organising the Lok Adalats and to encourage the public to settle their disputes outside the formal set-up.
4. To empower public especially women to participate in justice delivery mechanism.